

TENTATIVE RULINGS for LAW and MOTION

August 26, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen

(530) 406-6777

Telephone number for the clerk in Department Fourteen

(530) 406-6800

TENTATIVE RULING

Case: **Cramer v. Extreme RVs of Davis, LLC**
Case No. CV2025-1930

Hearing Date: **August 26, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Philadelphia Indemnity Insurance Company's unopposed motion for leave to file a verified cross-complaint for interpleader is **GRANTED**. (Code Civ. Proc., §§ 386, 428.10, 428.50.)

The proposed cross-complaint for interpleader, attached as Exhibit 1 to the motion, is deemed filed as of the hearing date.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Estrada v. Garcia**
Case No. **CV2025-2260**

Hearing Date: **August 26, 2026** Department **Fourteen** **9:00 a.m.**

Motion to compel further responses to tax-related discovery:

Plaintiff Felipe Estrada’s motion to compel further responses to tax-related discovery is **GRANTED IN PART**. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) As to defendant Daniel Navarrete Garcia’s response to interrogatory no. 15, the Court finds that defendant has failed to justify his objections. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

As to the other discovery responses, the Court declines to require defendants to provide further responses. Specifically, while the “statutory tax return privilege is not absolute,” “[t]he privilege will not be upheld” in three specific circumstances. (*Weingarten v. Superior Court* (2002) 102 Cal.App.4th 268, 274.) Plaintiff asserts that the third exception applies, such that this Court should compel defendants to provide their tax returns in response to his discovery requests. (See Ps & As, pp. 9-10.) However, this exception “is narrow and applies only when warranted by a legislatively declared public policy.” (*Weingarten, supra*, 102 Cal.App.4th at p. 274.) Indeed, a “trial court has broad discretion in determining the applicability of a statutory privilege.” (*Ibid.*) While plaintiff relies upon *Li v. Yan* (2016) 247 Cal.App.4th 56 and *Weingarten, supra*, 102 Cal.App.4th, the Court finds the circumstances presented in these cases distinguishable from the record here. (See *Li, supra*, 247 Cal.App.4th at pp. 66-69; *Weingarten, supra*, 102 Cal.App.4th at pp. 275-277.)

Defendant Garcia is **DIRECTED** to serve a further response to special interrogatory no. 15 by **September 16, 2026**.

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).) As the Court is only ordering a further response to one special interrogatory, it finds that defendants acted with substantial justification in opposing the motion.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motions to be relieved as counsel:

Melanie De Marco of BPE Law Group P.C.’s unopposed motions to be relieved as counsel for defendants Rosa Hernandez De Anda and Daniel Navarrete Garcia is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a**

copy of the signed order on the client. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for sanctions:

Plaintiffs Felipe Estrada and Alicia Navarrete's unopposed motion for sanctions against defendant Daniel Navarrete Garcia ("Garcia") is **GRANTED IN PART**. (Code Civ. Proc., § 128.5.) Based on the evidence presented by plaintiff, this Court finds that defendant engaged in frivolous actions and/or tactics made in bad faith. (*Ibid.*; Crisanto decl., ¶¶ 2-4; Estrada decl., ¶¶ 3-6; Navarrete decl., ¶¶ 3-6.) Therefore, pursuant to Code of Civil Procedure section 128.5(a), the Court imposes sanctions, in the amount of **\$10,868.74**, against Garcia only. (Schaps decl., ¶¶ 10-13.) The Court declines to impose sanctions for time not yet incurred. Garcia shall pay this sanction by **September 28, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, then the Court will execute plaintiffs' proposed order, lodged July 28, 2026.

TENTATIVE RULING

Case: **Gavin v. Inn at Park Winters et al.**
 Case No. CV2025-2565

Hearing Date: **August 26, 2026** **Department Thirteen** **9:00 a.m.**

The Court **SUSTAINS** defendants Inn at Park Winters, LLC, John Martin, and Rafael Galiano's (collectively, "defendants") evidentiary objection numbers 1, 3-9 to the declaration of Sharon Gavin. Defendants' remaining objections are **OVERRULED**.

Defendants' objections to the declaration of Brian McMahon are **OVERRULED**.

The Court **DENIES** plaintiff Sharon Gavin's ("plaintiff") application for right to attach order. (Code Civ. Proc., § 484.010 et seq.) Although the evidence is sufficient to establish the making of the loan of \$300,000, without the evidence that is kept out by objections, the remaining evidence is not sufficient to fully establish the calling of the loans due and the nonpayment thereof. Therefore, the Court finds that plaintiff fails to show a prima facie claim of all requisite elements for a cause of action based upon breach of contract. (Code Civ. Proc., §§ 484.030, 484.090, subd. (a)(2); *Santa Clara Waste Water Co. v. Allied World National Assurance Co.* (2017) 18 Cal.App.5th 881, 885; *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *Lydig Construction, Inc. v. Martinez Steel Corp.* (2015) 234 Cal.App.4th 937, 944 [plaintiff has the burden of establishing probable validity by means of competent declarations and supporting records showing amount and entitlement].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV2024-2614

Hearing Date: **August 26, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff Armond Sarkis' ("plaintiff") motion to strike defendants Yolo County Public Agency Risk Management Insurance Authority and Jill Renee Perez's (collectively, "defendants") memorandum of costs as premature, or, in the alternative, to tax costs and defendants' motion for attorneys' fees are **CONTINUED** to **September 9, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Tobia v. Hybe Corporation**
Case No. CV2024-2227

Hearing Date: **August 26, 2026** **Department Thirteen** **9:00 a.m.**

Motion to quash:

The Court notes that specially appearing defendant Hybe Co. Ltd.'s ("Hybe") notice of motion to quash designated a hearing date on the motion more than 30 days after filing of the notice. (Code Civ. Proc., § 418.10, subd. (b) ["[t]he notice shall designate, as the time for making the motion, a date not more than 30 days after filing of the notice".]) Nonetheless, the Court will consider the merits of Hybe's motion. (*Olinick v. BMG Entertainment* (2006) 138 Cal.App.4th 1286, 1296 [scheduling a hearing date beyond the 30-day time period does not deprive the court of jurisdiction to consider the merits of the motion].)

Hybe's motion to quash for lack of personal jurisdiction is **GRANTED**. (Code Civ. Proc., § 418.10, subd. (a)(1).) "When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction." (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449; see also *Farina v. SAVWCL III, LLC* (2020) 50 Cal.App.5th 286, 294-295; *Burdick v. Superior Court* (2015) 233 Cal.App.4th 8, 18.) The Court finds that plaintiff has failed to satisfy her burden.

The Court orders that Hybe is not a party to this action, and all claims by plaintiff against Hybe are **DISMISSED**. (Code Civ. Proc., § 418.10, subd. (a)(1).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Plaintiff filed an untimely opposition. (Code Civ. Proc., § 1005, subd. (b) [all papers opposing a motion must be filed with the court and a copy served on each party at least nine court days before the hearing].) The Court declines to consider plaintiff's late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Given the Court's order on Hybe's motion to quash for lack of personal jurisdiction, Hybe's demurrer to plaintiff's first amended complaint is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 430.10, subs. (e), (f).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave to amend complaint and stay:

Plaintiff's motion for leave to amend complaint and stay as to Hybe is **DENIED**. (Code Civ. Proc., § 473, subd. (a); Cal. Rules of Court, rule 3.1324.) Given the Court's ruling on Hybe's motion to quash, Hybe is no longer a party to this case. (Code Civ. Proc., § 418.10, subd. (a)(1).) Plaintiff's motion for leave to amend complaint and stay as to Hosek Jeong Jung is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (a); Cal. Rules of Court, rule 3.1324.) The Court finds that plaintiff's motion fails to (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

On the Court's own motion, the case management conference is continued to **November 23, 2026**, at 9:00 a.m. in Department Thirteen.